

## Hollowell Patent Group PLLC

www.hollowellpatent.com

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May 3, 2019

Gary Smith  
General Manager  
Odonnell Inc

Dear Mr. Smith:

This letter sets out the terms on which the firm will review the patent portfolio of Odonnell Inc. It follows our conversations this spring and the schedule of matters your office sent afterward, and it records what we will review, who will carry the work, what we will need from you, and the commercial terms that govern the engagement. When you have signed and returned the enclosed copy, this letter becomes the agreement between us and replaces anything discussed before it.

### **The Portfolio Review**

The engagement is a structured review of the patents and pending applications in the portfolio, taken one family at a time. For each family we will reconcile the docketed dates against the office record, review the prosecution history and the claims as they now stand, and identify any filing, response, or decision that is coming due. You will receive a written review organized the same way, family by family, setting out what we found and the questions we believe you should decide.

Some work sits outside this review and is available under a separate engagement if you ask for it. Under this letter we are not prosecuting new applications, responding to office actions, filing continuations, or preparing a freedom-to-operate opinion; where the review reaches a matter that calls for one of those, we will tell you and stop rather than begin work you have not authorized. The review is not an opinion that any patent is valid, infringed, or clear to practice, and it should not be read or relied upon as one.

### **How the Review Will Run**

We work from the office record and your own files rather than from a summary prepared by someone else. Heather Munoz will take the families in an order we set against the docket, so that the matters closest to a deadline are reviewed first and nothing urgent waits behind something that can wait. We keep the docket at the

center of the work, and the review is built to surface any date at risk early enough that you can act on it deliberately rather than under pressure. You will hear from us on a regular schedule, and every update will be tied to the matter it concerns.

### **Who Will Do the Work**

Heather Munoz, a partner in the prosecution group, leads the review and is responsible for what we conclude and for what we send you. Kelly Snyder, a patent agent, keeps the portfolio docket current and reconciles the dates the review relies on. Amanda Schwartz, an associate, prepares the family-by-family write-ups under Heather Munoz's review. I read the completed review before it reaches you, as I do with everything that leaves this office, and I am the person to call if at any point you are not satisfied with the work or with the people doing it.

### **Conflicts**

We have run our conflicts check for this matter and are clear to act for you. Should a conflict arise later, whether from a new client or a change in an existing one, we will bring it to you promptly and address it as our professional obligations require, which may include declining part of the work. We will not take on a matter adverse to your interests in this portfolio while this engagement is open.

### **When the Work Begins**

Work commences on May 13, 2019, subject to your signature on this letter and to our receiving the portfolio schedule, access to the prosecution files, and confirmation of who at Odonnell Inc we should coordinate with on individual matters. We will not begin billing before that date. If you need us to hold a specific date in the meantime, tell us and we will docket it so that it is not lost while the letter is in transit.

### **Fees and Payment**

Our fee for the review, and the basis on which it is fixed, are stated on the signature page, which counsel for each side has executed separately, and they are not repeated here. We invoice monthly for the work of the preceding month, and each invoice is payable within thirty days of its date. Work that falls outside the review is not undertaken on assumption: if you ask for something this letter does not cover, we will quote it and wait for your written authorization before we begin. If an invoice remains unpaid beyond its terms, we may suspend work on the matter after written notice to you; because the review runs against live dockets, we will identify any date then at risk before we stop, so that a billing dispute never becomes a lost deadline.

## **Term and Ending the Engagement**

This agreement takes effect on the date you sign below and continues until the review is delivered and our final invoice paid. Either of us may end it earlier on written notice to the other. If the engagement ends before the review is complete, you will owe us for the work performed and the expenses incurred to that point, and we will deliver our work in the state it then stands together with a written note of what remains open and any date we know to be approaching. An unfinished review is not a conclusion and should not be relied on as one.

## **Confidentiality and Privilege**

We will hold what you give us in confidence and use it only for this engagement, and access within the firm is limited to the people named above and to those whose work on the matter requires it. We will not disclose your information outside the firm without your consent, except where a court or another authority with jurisdiction compels it, and in that event we will tell you first if we are free to do so. Our written analysis is prepared as privileged attorney work product for Odonnell Inc; to keep that protection intact, please limit its circulation on your side and do not forward it outside the company without speaking to us first. These obligations continue after the engagement ends.

## **The Limit of Our Liability**

Our liability to you arising out of this engagement, whether framed in contract or in negligence, will not exceed the total fees you pay us under it, except in the case of our fraud or willful misconduct. Neither of us will be liable to the other for indirect or consequential loss, including lost profits or lost opportunity, whether or not the possibility was known in advance. Our review rests on the accuracy and completeness of the records you and the patent offices provide; where those records are wrong or incomplete, the consequences of the error are not ours to carry, though we will tell you as soon as we have reason to doubt what we have been given.

## **Governing Law**

This agreement is governed by the law of the state in which our office sits, without regard to its conflict-of-laws rules. Before either of us begins a proceeding, we will try to resolve the dispute through discussion between people with authority to settle it. This letter and its signature page are the whole of the agreement on their subject, and either may be changed only in a writing signed by both of us.

If these terms match your understanding, please sign both copies where indicated, keep one for your file, and return the other to my office. If any term does not,

telephone me and we will settle it before you sign. The one thing I need from you to start the review is the signed letter; send it back and we will docket the portfolio and begin the first family.

Very truly yours,

**Fixed professional fee, as executed: \$120,000**

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**Mary Bradley**

Managing Partner

Date: May 3, 2019

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**Gary Smith**

General Manager, Odonnell Inc

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